

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
SYLVESTER SANTANA,

Index No.:

Plaintiff,

Date Purchased:

- against -

SUMMONSCITY OF NEW YORK, POLICE OFFICER SAMEER
UMRAO, Shield No. 22877, individually and in his official
capacity, POLICE OFFICER "JOHN" SMITH,
individually and in his official capacity, and POLICE
OFFICERS "JOHN DOE", individually and in their
official capacities, fictitious names used to identify
presently unknown police officers,

Basis of Venue is CPLR §504

Defendants.
-----X

To the above named defendant(s):

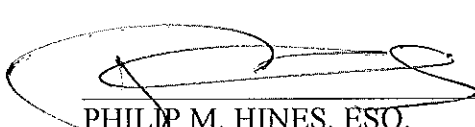
YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a Notice of Appearance, on the Plaintiff's attorney(s) within twenty (20) days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Brooklyn, New York
October 29, 2014

Yours, etc.,

Defendants' Addresses:

HELD & HINES, L.L.P.

CITY OF NEW YORK
100 Church Street
New York, New York 10007POLICE OFFICER SAMEER UMRAO
c/o NYPD 40th Precinct
257 Alexander Avenue
Bronx, New York 10454POLICE OFFICER "JOHN" SMITH
c/o NYPD 40th Precinct
257 Alexander Avenue
Bronx, New York 10454
PHILIP M. HINES, ESQ.*Attorneys for Plaintiff*
Office and P.O. Address
2004 Ralph Avenue
Brooklyn, New York 11234
Tel: (718) 531-9700
Fax: (718) 444-5768

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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Index No.:

VERIFIED COMPLAINT

Plaintiff, SYLVESTER SANTANA, by his attorneys, HELD & HINES, LLP, as and for
his Verified Complaint, hereinafter states and alleges as follows upon information and belief:

1. At all times mentioned herein, the plaintiff was and remains a resident of the State
of New York.

2. Upon information and belief, and at all times mentioned herein, the defendant,
City of New York (hereinafter referred to as the "City"), was and remains a body corporate and
politic, constituting a municipal corporation, duly organized and existing under and by virtue of
the laws of the State of New York.

3. Upon information and belief, and at all times mentioned herein, the City
maintains the New York City Police Department (hereinafter referred to as the "NYPD"),
pursuant to law.

4. Upon information and belief, and at all times mentioned herein, the NYPD was
and remains under the supervision and control of the City.

5. At all times mentioned herein, Defendant Police Officer Sameer Umrao

(hereinafter referred to as “PO Umrao”) was an NYPD police officer¹ employed by the City.

6. At all times mentioned herein, PO Umrao was assigned to and/or under the command of the 40th Precinct.

7. PO Umrao is sued in his individual and official capacity.

8. At all times mentioned herein, Defendant Police Officer “John” Smith (hereinafter referred to as “PO Smith”) was an NYPD police officer employed by the City.

9. PO Umrao is sued in his individual and official capacity.

10. At all times mentioned herein, PO Smith was assigned to and/or under the command of the 40th Precinct.

11. At all times mentioned herein, Defendant Police Officers John Doe (hereinafter referred to as “PO John Does”) were NYPD police officers employed by the City.

12. At all times mentioned herein, PO John Does were assigned to and/or under the command of the 40th Precinct.

13. The identities of the PO John Does are not presently known, but they are believed to be police officers and supervisory personnel endowed and bestowed with various ranks and appointments upon them by the City and/or NYPD, and are sued in their capacities as individuals as well as in their official capacities as police officers acting under the color of law.

14. The PO John Does were those individuals who used excessive physical force on Plaintiff; assaulted and battered Plaintiff without legal justification; violated Plaintiff’s civil and common law rights while acting under color of law; drafted and filed, or conspired to file, knowingly false incident reports regarding the subject incident; gave knowingly false statements; failed to report or truthfully report the incident alleged herein; and/or took specific and definitive

¹ As used herein, the term “police officer” is intended to refer to New York City Police Department officers in the general and not to any specific rank, title or position.

measures to cover up evidence of their own and/or other officers' unlawful activities.

15. Upon information and belief, and at all times mentioned herein, the City was charged with the hiring, training, retention, direction, supervision, discipline, oversight, appointment and promotion of the NYPD officers, supervisors and staff in their employ, including but not limited to PO Umrao, PO Smith and PO John Does (hereinafter collectively referred to as "the defendant police officers").

16. Upon information and belief, and at all times mentioned herein, the City and NYPD, their agents, servants and/or employees, managed, supervised, directed and/or controlled the custody, confinement, care and treatment of those persons arrested, confined and/or otherwise detained by NYPD officers, including but not limited to the plaintiff.

STATEMENT OF FACTS

17. On or about September 18, 2013, Plaintiff was arrested by NYPD officers and transported to Lincoln Medical Center.

18. While at Lincoln Medical Center, Plaintiff remained in police custody and was handcuffed to his hospital bed.

19. While handcuffed to his hospital bed, PO Umrao struck Plaintiff in the head with a baton or similar object, causing Plaintiff to suffer physical and emotional injuries.

20. While handcuffed to his hospital bed, PO Smith struck Plaintiff in the head with a baton or similar object, causing Plaintiff to suffer physical and emotional injuries.

21. While handcuffed to his hospital bed, PO John Does struck Plaintiff in the head with a baton or similar object, causing Plaintiff to suffer physical and emotional injuries.

22. At the time of the aforesaid use of force, Plaintiff was not a threat, immediate or otherwise, to the defendant police officers or the public as he was handcuffed to his hospital bed.

23. No reasonable police officer would have perceived Plaintiff to be aggressive or confrontational such that would require or warrant an officer to intentionally strike Plaintiff.

24. At no time prior to the use of force did any NYPD officer attempt to defuse any perceived situation by issuing a verbal command or warning to Plaintiff or by using non-contact control techniques.

25. The defendant police officers could have avoided using force on Plaintiff, but neglected or refused to do so.

26. The defendant police officers used unlawful and excessive physical force upon Plaintiff.

27. The defendant police officers subjected Plaintiff to cruel, unusual, inhumane, humiliating and degrading treatment.

28. The defendant police officers used force on Plaintiff as punishment.

29. The defendant police officers subjected Plaintiff to unnecessary and wanton infliction of pain.

30. The defendant police officers' conduct was grossly disproportionate to the circumstances then and there existing.

31. The defendant police officers did not need to use physical force and/or inflict blows as Plaintiff was not physically threatening to the defendant police officers.

32. The defendant police officers did not need to use physical force and/or inflict blows upon Plaintiff in self-defense, in order to maintain order, in order to enforce observation of discipline, or in order to secure or control Plaintiff.

33. At no point during the time period mentioned herein did Plaintiff neglect or refuse a lawful order of a police officer or rule or regulation of the City or NYPD, nor did he resist or

disobey any lawful command of a police officer, nor did he offer violence to any officer or other detainee, nor did he injure or attempt to injure public or private property, nor did he attempt to escape, nor did he attempt to lead or take part in a revolt or insurrection.

34. At no point during the aforesaid time period did any police officer or supervisor intervene, protect, or come to the aid or defense of Plaintiff.

35. The aforesaid use of force was in retaliation to and/or retribution for events that transpired during the arrest of Plaintiff earlier that day.

36. In an effort to cover up their unlawful and excessive use of force, the defendant police officers failed to document and report the use of force to supervisors and/or command personnel, as required by the NYPD Patrol Guide and law.

37. In an effort to mitigate their unlawful and excessive use of force, the defendant police officers knowingly drafted and/or filed, or conspired to file, false records wherein they dishonestly reported the cause and events of the use of force.

38. As set forth above, NYPD supervisors and officers failed to notify City or federal authorities as to what they had seen and/or heard.

39. As set forth above, City, NYPD and/or their supervisory personnel failed to take appropriate action to investigate and report the subject incident.

**AS AND FOR A FIRST CAUSE OF ACTION:
VIOLATIONS OF PLAINTIFF'S CIVIL RIGHTS**

40. Plaintiff repeats, reiterates and realleges each and every allegation of paragraphs "1" through "39", inclusive, of this Complaint, as if same were fully set forth herein.

41. As set forth above, Defendants, acting under the color of law, did assault, batter and use excessive physical force on Plaintiff; did use force on Plaintiff as punishment; did

retaliate against Plaintiff; did knowingly draft and/or file false reports, incident reports, criminal complaints and/or medical reports in an effort to cover-up evidence of their unlawful activities; and were deliberately indifferent to Plaintiff's safety, security, health and immediate medical needs, all without legal cause or justification and with purposeful intent to cause harm to Plaintiff.

42. As set forth above, the defendants failed to notify City or federal authorities as to what they had seen and/or heard, as required by law.

43. As set forth above, the defendants failed to take appropriate action to investigate and report the subject incident, as required by law.

44. As set forth above, the subject incident, as well as the defendant officers' ignoring, acquiescence, joining and/or complicity in same, constituted an unnecessary, unreasonable, and excessive use of force.

45. As set forth above, these defendants have made every effort to conceal the truth about what actually occurred, including but not limited to covering up, or attempting to cover up, the illegal conduct complained of herein.

46. The defendants' aforesaid acts and omissions violated the plaintiff's clearly established civil rights and were the direct and proximate cause of the physical, psychological, and emotional injuries he suffered.

47. The actions of the defendant officers were malicious in the instance.

48. The City and NYPD have had, and continue to have, a custom and practice of deliberate delay and avoidance in investigating allegations of abuse and other misconduct by their officers, to the detriment of the plaintiff.

49. The defendant officers, by reasonable diligence, could have prevented the aforesaid wrongful acts from being committed.

50. As a result of the foregoing, Plaintiff was subjected to a deprivation of rights, physical, psychological and emotional injuries, pain and suffering, pecuniary loss, and has been otherwise damaged thereby.

**AS AND FOR A SECOND CAUSE OF ACTION:
CONSPIRACY**

51. Plaintiff repeats, reiterates and realleges each and every allegation of paragraphs "1" through "50", inclusive, of this Complaint, as if same were fully set forth herein.

52. The City, NYPD supervisors, and defendant police officers, acting under the color of law, willfully conspired with one another to deprive the plaintiff of his civil rights, including but not limited to his right: to be free from cruel and unusual punishment; to be free from the use of unreasonable and/or excessive force; to be free from harassment and intimidation; to be free from retaliation for exercising his First Amendment rights; and to associate and speak freely.

53. It was part of said conspiracy that the defendants failed to report the subject incident; did submit false reports, statements and/or testimony to support and corroborate the fabricated allegations lodged against the plaintiff, for their own benefit; and/or did deliberately suppressed the truth.

54. Defendants had knowledge that a conspiracy was in progress, had the power to prevent or aid in preventing the conspiracy from continuing, and neglected or refused to do so.

55. With due diligence, NYPD officers and supervisors could have promptly reported the subject events to superiors and to duly authorized investigators. Their failure to do so has allowed the conspiracy to continue and the truth be suppressed.

56. Had said defendants complied with the law and furnished truthful information to authorities about their conduct, the conspiracy would not have succeeded to the extent that it has.

57. As a result of the foregoing, Plaintiff was subjected to a deprivation of rights, physical, psychological and emotional injuries, pain and suffering, pecuniary loss, and has been otherwise damaged thereby.

**AS AND FOR A THIRD CAUSE OF ACTION:
ASSAULT AND BATTERY**

58. Plaintiff repeats, reiterates and realleges each and every allegation of paragraphs "1" through "57", inclusive, of this Complaint, as if same were fully set forth herein.

59. As set forth above, Plaintiff was assaulted and battered by PO Umrao.

60. As set forth above, Plaintiff was assaulted and battered by PO Smith.

61. As set forth above, Plaintiff was assaulted and battered by PO John Does.

62. The aforesaid assault and battery was excessive, unnecessary, unprovoked, unjustified, and unlawful.

63. As a result of the foregoing, Plaintiff was subjected to a deprivation of rights, physical, psychological and emotional injuries, pain and suffering, pecuniary loss, and has been otherwise damaged thereby.

**AS AND FOR A FOURTH CAUSE OF ACTION
NEGLIGENCE**

64. Plaintiff repeats, reiterates and realleges each and every allegation of paragraphs "1" through "63", inclusive, of this Complaint, as if same were fully set forth herein.

65. The defendant police officers were negligent in the instance in injuring Plaintiff; in failing to protect the safety, health and welfare of the plaintiff; in failing to quickly and

diligently intercede on behalf of Plaintiff; in setting a trap for the plaintiff; in failing to take cognizance of a dangerous and escalating situation; in failing to take reasonable measures and precautions to avoid and/or mitigate violence; in violating the plaintiff's civil, statutory and common law rights; in infringing upon the freedoms afforded to the plaintiff; in being deliberately indifferent to the plaintiff's health, safety, and security; in acting in a violent and dangerous manner towards the plaintiff; in causing, creating and/or allowing unlawful conditions to be and remain; in failing to give the plaintiff notice and/or warning; in causing and/or allowing the plaintiff to be injured; in causing and creating a dangerous condition conducive to causing injury; in creating and allowing a nuisance to exist; in failing to provide for the safety of the plaintiff; in failing to protect the plaintiff in each and every instance set forth above; in causing, permitting and/or allowing the plaintiff to be assaulted and battered; in denying the plaintiff access to timely, due and adequate medical care for the injuries he suffered during the subject incident; and the defendant police officers were otherwise negligent, careless and reckless in the instance.

66. Inasmuch as the defendant police officers were acting for, upon, and in furtherance of the business of the City of New York and within the scope of their employment, the City of New York is liable under the doctrine of *respondeat superior* for the tortious actions of said persons.

67. As a result of the foregoing, Plaintiff was caused to suffer physical, psychological and emotional injuries, pain and suffering, pecuniary loss, and has been otherwise damaged.

**AS AND FOR A FIFTH CAUSE OF ACTION:
VIOLATION OF NEW YORK CONSTITUTION AND STATUTES**

68. Plaintiff repeats, reiterates and realleges each and every allegation of paragraphs “1” through “67”, inclusive, of this Complaint, as if same were fully set forth herein.

69. As set forth above, Plaintiff was deprived by defendants of his rights to free speech and association, to be free from gratuitous and excessive force and punishment, to be free from cruel and unusual punishment, to be free from retaliation and retribution, and to due process of law, as guaranteed to him by the constitution and statutes of the City and State of New York and the Charter of the City of New York.

70. The aforesaid violations, and the failures of the City and its supervisory personnel to take appropriate steps to curb the widespread pattern of same or similar conduct by their officers violated Plaintiff’s rights under the New York State Constitution.

71. By their refusal to provide prompt medical attention to Plaintiff after he was injured, the defendants violated Plaintiff’s civil and statutory rights.

72. The defendants conduct complained of herein violated Plaintiff’s rights secured by the Constitution of the State of New York, Article 15 of the New York State Executive Law (“NYS Human Rights Law”), Section 40 *et seq.* of the New York State Civil Rights Law (the “NYS Civil Rights Law”), New York Corrections Law, and Sections 8-107 *et seq.*, 8-502 *et seq.* and 8-603 *et seq.* of the Administrative Code of the City of New York (the “City Human Rights Law”)

73. As a result of the foregoing, Plaintiff was caused to suffer physical, psychological and emotional injuries, pain and suffering, pecuniary loss, and has been otherwise damaged.

**AS AND FOR A SIXTH CAUSE OF ACTION:
LIABILITY OF CITY OF NEW YORK**

74. Plaintiff repeats, reiterates and realleges each and every allegation of paragraphs "1" through "73", inclusive, of this Complaint, as if same were fully set forth herein.

75. The defendant police officers, collectively and individually, while acting under color of state and local law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the City of New York but which is forbidden by the Constitution of the United States.

76. That prior to December 18, 2013, the City and NYPD developed and maintained customs, policies, usages, practices, procedures and rules exhibiting deliberate indifference to the constitutional rights of the public, which caused the violations of the plaintiff's rights.

77. That the aforementioned customs, policies, usages, practices, procedures and rules of the City and NYPD included, but were not limited to: (a) ignoring the constitutional rights of the general public; (b) ignoring the constitutional rights of persons in their custody and control; (c) depriving persons in their custody and control their constitutional rights; (d) using force in an unreasonable, unnecessary, unjustified and excessive manner; (e) failing to adequately instruct and supervise the police officers under said defendants' control in the proper and appropriate care and treatment of individuals and detainees in their custody and control; (f) inadequately and/or improperly investigating complaints of harassment, intimidation, misconduct, use of force and abuse by police officers, and inadequately punishing the subjects of those complaints which were substantiated; (g) tolerating acts of brutality; (h) failing to fully and faithfully investigate allegations that police officers used force on handcuffed individuals or detainees; (i) the Internal Affairs Bureau having substantially failed in their responsibilities to investigate misconduct and

discipline offenders; (j) having policies that operate to insulate police officers who engage in criminal or other serious official misconduct from detection, prosecution, and punishment, and are maintained with deliberate indifference; and (k) allowing police officers and supervisors to engage in a pattern and practice of actively and passively covering up misconduct by fellow officers, thereby establishing and perpetuating a “code of silence”, which has become so ingrained in the defendants so as to constitute a policy of the City and NYPD.

78. The long-standing failure or refusal to supervise the police officers under said defendants’ control, including supervisory staff, is now so institutionalized as to constitute a policy or custom of tolerating and authorizing the type of abuse alleged herein. It is this policy or custom of abuse and cover-up that has caused the deprivation of the plaintiff’s rights.

79. Said defendants’ policy or custom of tolerating and authorizing this type of abuse is further evidenced by frequent and significant findings of misconduct over a period of years by command personnel, supervisors, and the police officers they supervise.

80. The failures and refusals by the City and NYPD to hold these supervisors and police officers accountable is a proximate cause of the injuries sustained by the plaintiff, and undoubtedly hundreds of other persons.

81. Through promotions and other financial and status incentives, the City and NYPD have the power to reward police officers who perform their jobs adequately and to punish – or at the very least fail to reward – those who do not. The City and NYPD’s actions and omissions have created and maintained the perception among high-ranking supervisors that a supervisor who turns a blind eye towards evidence of officer harassment and intimidation, cover-up, medical neglect, or other misconduct, and fails to investigate these incidents, will suffer no damage to his or her career or financial penalty.

82. The pattern of unchecked abuse by police officers and supervisory staff, the extent to which these unlawful practices have been adopted by significant numbers of the staff, and the persistent failure or refusal of the City and NYPD to supervise these persons properly and to take action to curb the misconduct, demonstrates a policy of deliberate indifference which tacitly authorizes the claimed misconduct against the plaintiff

83. The foregoing customs, policies, usages, practices, procedures and rules of the City and NYPD constituted deliberate indifference to the safety, well-being and constitutional rights of the plaintiff.

84. The foregoing customs, policies, usages, practices, procedures and rules of the City and NYPD were the direct and proximate cause of the civil rights violations and injuries suffered by the plaintiff.

85. The foregoing customs, policies, usages, practices, procedures and rules of the City and NYPD were the moving force behind the civil rights violations and injuries suffered by the plaintiff.

86. Prior to and at the time of the subject date of incident, there existed a pattern and practice of police harassment, intimidation, excessive uses of physical force, cover-ups and conspiracies to cover-up unlawful conduct, failures to conduct unbiased and thorough investigations of same and to discipline staff meaningfully and promptly for misconduct, and the long-standing failure or refusal to supervise police officers, including supervisory staff. These practices are now so institutionalized as to constitute a policy or custom of tolerating and authorizing the wrongs alleged herein. It is this policy or custom of abuse and cover-up that has caused the deprivation of Plaintiff's constitutional rights.

87. The City and NYPD have failed or refused to hold accountable high-ranking supervisors (i.e., captains, lieutenants, assistant deputy commissioners, deputy commissioners, and commissioners) in the face of frequent and significant misconduct, over a period of years, by these supervisors and by the officers they supervise. This failure has subjected Plaintiff and other members of the public to the constitutional and statutory violations alleged herein. This failure is a proximate cause of the injuries sustained by the plaintiff and by other members of the public.

88. As a result of the foregoing, Plaintiff is entitled to compensatory damages, together with attorney's fees, costs, expert's fees, and disbursements.

**AS AND FOR A SEVENTH CAUSE OF ACTION:
INTENTIONAL AND NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS**

89. Plaintiff repeats, reiterates and realleges each and every allegation of paragraphs "1" through "88", inclusive, of this Complaint, as if same were fully set forth herein.

90. The conduct of the defendant police officers was intentional, malicious and excessive, and served no reasonable or legitimate police interest.

91. The conduct of the defendant police officers was negligent and served no reasonable or legitimate police interest.

92. The defendants' intentional, reckless and/or negligent conduct constituted misconduct of an egregious and outrageous nature that exceeds all bounds usually tolerated by society and unreasonably endangered Plaintiff's physical safety.

93. As a result of the foregoing, Plaintiff suffered and continues to suffer severe and serious emotional injuries.

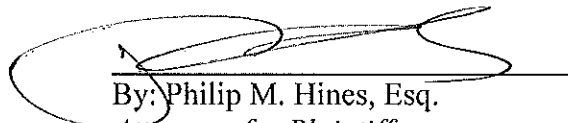
94. This action falls within one or more of the exceptions set forth in CPLR §1602.

WHEREFORE, Plaintiff requests compensatory damages against all defendants in an amount to be determined at trial, punitive damages against the individual defendants in an amount to be determined at trial, attorney's fees, costs and disbursements pursuant to law, and such other and further relief as this Court deems just and proper.

Dated: Brooklyn, New York
October 29, 2014

Yours, etc.,

HELD & HINES, L.L.P.



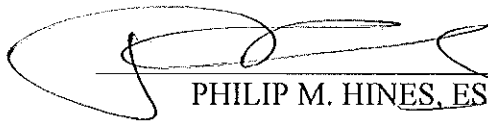
By: Philip M. Hines, Esq.
Attorneys for Plaintiff
Office and P.O. Address
2004 Ralph Avenue
Brooklyn, New York 11234
(718) 531-9700

ATTORNEY VERIFICATION

PHILIP M. HINES, an attorney duly licensed to practice in the courts of the State of New York, hereby affirms the following under penalties of perjury:

That I am a member of the law firm of HELD & HINES, L.L.P., attorneys for the plaintiff in the within action, SYLVESTER SANTANA; that I have read the foregoing Verified Complaint and know the contents thereof; and that the same is true to my own knowledge, except as to the matters therein alleged to be on information and belief, and as to those matters, I believe them to be true. The reason this Verification is made by me and not by the plaintiff is that said plaintiff resides outside of the County in which the Affirmant's office is located.

The grounds of my belief as to all matters stated upon my own knowledge are as follows:
the records, reports, contracts, and documents contained in the plaintiffs' file.


PHILIP M. HINES, ESQ.

Affirmed to this 29th
day of October, 2014

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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Plaintiff,

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Defendants.
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SUMMONS AND VERIFIED COMPLAINT

HELD & HINES, LLP
Attorneys for Plaintiff(s)
Office & Post Office Address
2004 Ralph Avenue
Brooklyn, New York 11234
(718) 531-9700

Signature (Rule 130-1.1-a)



PHILIP M. HINES, ESQ.